



Notification Waiver Determination

Atlas Holdings and KPS — shares in joint venture and interest in C&D Technologies

Acquisition	Ampere Holdings I B.V. (Ampere) and ACR III Edison Holdings LLC (ACR III Edison) applied for a notification waiver in respect of Ampere's proposed acquisition of an equity interest in a newly incorporated joint venture entity (the JVCo), and JVCo's proposed acquisition of C&D Technologies Inc. (C&D Technologies) and certain of its subsidiaries and affiliates from Ampere, as described in the transaction documents provided as part of the application (together, the Acquisition). The broader transaction involves other acquisitions, including ACR III Edison acquiring an equity interest in JVCo, and JVCo acquiring Stryten Energy, Element Resources, and Motrex (together with their subsidiaries, the Edison Group). These further acquisitions are not subject to this notification waiver determination.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	17 August 2026

Parties to the Acquisition	ACR III Edison is a subsidiary of Atlas FRM LLC, doing business as Atlas Holdings LLC (Atlas). Atlas is a US-based private investment firm headquartered in Greenwich, Connecticut. Atlas and its affiliated funds own and operate a portfolio of companies active across a range of industrial and manufacturing sectors, including automotive components, building materials, capital equipment, construction services, food manufacturing and distribution, metals processing, packaging, paper, power generation, printing, pulp, supply chain management and wood products. Atlas, through ACR III Edison, currently indirectly controls the Edison Group. The Edison Group forms a platform active in energy storage solutions, lead battery recycling and related shared services. Ampere is a subsidiary of KPS Capital Partners, LP (KPS). KPS is a private investment company incorporated in the US. Through its affiliated management entities, it is the manager of the KPS Special Situations Funds, a family of investment funds with approximately USD 18.6 billion of assets under management (as of 31 March 2026). KPS has controlling equity investments in manufacturing and industrial companies across a diverse array of industries, including basic materials, branded consumer, healthcare and luxury products, automotive parts, capital equipment and general manufacturing. KPS currently indirectly controls C&D Technologies.
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	C&D Technologies is a US-headquartered private business which manufactures battery and energy storage solutions and services for industrial and commercial applications, including data centres, telecommunications, infrastructure, utilities, uninterruptable power supply, cable, broadband and renewable energy markets. C&D Technologies also includes the C&D Technologies business line trading under the Trojan Battery company name, which supplies deep-cycle battery products for motive and other energy storage applications.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between the parties in the supply of battery and energy storage solutions in Australia b. there are several alternative suppliers of battery and energy storage solutions to customers in Australia c. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act